



**U.S. Customs and
Border Protection**

February 26, 2026

EAPA Case 8225

PUBLIC VERSION

Daniel B. Pickard

On behalf of Diamond Sawblades Manufacturers' Coalition

Buchanan Ingersoll & Rooney PC

1700 K Street, N.W., Suite 300

Washington, DC 20006-3807

daniel.pickard@bipc.com

Dymatec USA, LLC

463 Southpoint Circle, Suite 200

Brownsburg, IN 46112

sales@dymatecusa.com

Re: Notice of Initiation of Investigation and Interim Measures - EAPA Case 8225

Dear Counsel and/or Representatives for the Above-Referenced Entities:

This letter is to inform you that U.S. Customs and Border Protection (CBP) has commenced a formal investigation of Dymatec USA, LLC (DUSA or the Importer) and its affiliated United Kingdom (U.K.) parent company, Dymatec, Ltd. (DUK), under Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015, commonly referred to as the Enforce and Protect Act (EAPA). CBP is investigating whether DUSA evaded the antidumping (AD) duty *Order* on diamond sawblades and parts thereof, from the People's Republic of China (China).¹ Also, CBP is investigating whether DUSA is importing the covered merchandise² from its parent

¹See *Diamond Sawblades and Parts Thereof from the People's Republic of China and the Republic of Korea: Antidumping Duty Orders*, 74 FR 57145 (November 4, 2009). The applicable antidumping duty order covered by this allegation is A-570-900 (*Order*). On October 11, 2011, the U.S. Department of Commerce (Commerce) included the 6804.21.00.00 HTSUS classification number to the customs case reference file, pursuant to a request by CBP. See *Diamond Sawblades and Parts Thereof from the Republic of Korea: Preliminary Results of Antidumping Duty Administrative Review*, 76 FR 76128 (December 6, 2011). Pursuant to additional requests by CBP, Commerce added the following HTSUS classification numbers to the customs case reference file: 8202.39.0040 and 8202.39.0070 on January 22, 2015, and 6804.21.0010 and 6804.21.0080 on January 26, 2015. See *Diamond Sawblades and Parts Thereof from the People's Republic of China: Final Results of Antidumping Duty Administrative Review; 2016-2017*, 83 FR 64331 (December 14, 2018), and accompanying Issues and Decision Memorandum at 3.

² The term "covered merchandise" refers to merchandise that is subject to an AD and/or a CVD order. See 19 C.F.R. § 165.1.

company, DUK, into the United States under various HTS codes not covered by the *Order*, presumably to further avoid paying antidumping duties. CBP has imposed interim measures because there is reasonable suspicion that DUSA entered merchandise covered by the *Order* into the customs territory of the United States through evasion.³

Period of Investigation (POI)

Pursuant to 19 C.F.R. § 165.2, entries covered by an EAPA investigation are those “entries of allegedly covered merchandise made within one year before the receipt of an allegation under § 165.11 or of a request for an investigation under § 165.14. In addition, at its discretion, CBP may investigate other entries of such covered merchandise.” Entry is defined as “the entry, or withdrawal from warehouse for consumption, of merchandise into the customs territory of the United States.”⁴ CBP acknowledged receipt of the properly filed allegations against DUSA on November 4, 2025.⁵ Therefore, the entries covered by the POI are those entered for consumption, or withdrawn from warehouse for consumption, from November 4, 2024, through the pendency of this investigation.⁶

Initiation

The Trade Remedy Law Enforcement Directorate (TRLED) within CBP’s Office of Trade will initiate an investigation if it determines that “{t}he information provided in the allegation ... reasonably suggests that the covered merchandise has been entered for consumption into the customs territory of the United States through evasion”⁷ Evasion is defined as “the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the covered merchandise.”⁸ Thus, the allegation must reasonably suggest not only that merchandise covered by an AD and/or countervailing duty (CVD) order was entered into the customs territory of the United States by the importer alleged to be evading, but also that such entry was made with a material false statement or act, or material omission, that resulted in the reduction or avoidance of applicable AD and/or CVD cash deposits or other security.

On November 21, 2025, TRLED initiated an EAPA investigation against importer of record (IOR) DUSA based on an allegation filed by the Diamond Sawblades Manufacturers’ Coalition (DSMC or the *Alleger*).⁹ In the allegation, DSMC claimed that DUSA is entering covered

³ See 19 U.S.C. § 1517(e); *see also* 19 C.F.R. § 165.24.

⁴ See 19 U.S.C. § 1517(a)(4); *see also* 19 C.F.R. § 165.1.

⁵ See Email from CBP, “EAPA 8225 – Receipt of Properly Filed Allegation,” dated November 4, 2025.

⁶ See 19 C.F.R. § 165.2.

⁷ See 19 C.F.R. § 165.15(b); *see also* 19 U.S.C. § 1517(b)(1).

⁸ See 19 U.S.C. § 1517(a)(5)(A); *see also* 19 C.F.R. § 165.1 (setting forth the definition of “evasion”).

⁹ See CBP Memoranda, “Initiation of Investigation for EAPA Case 8225 (Case 8225),” (November 21, 2025) (EAPA 8225 Initiation Memorandum); *see also* DSMC’s Letter, “Diamond Sawblades and Parts Thereof from the People’s Republic of China: Request for an Investigation Under the Enforce and Protect Act,” dated October 30, 2025 (the Allegation); and, DSMC’s Letter, “Diamond Sawblades and Parts Thereof from the People’s Republic of China: Supplemental Information to EAPA Case No. 8225,” dated October 31, 2025 (Supplemental to the Allegation).

merchandise into the customs territory of the United States by transshipping Chinese-origin covered merchandise through its parent company, DUK, while claiming the country-of-origin as the United Kingdom; and by misclassification of entries under harmonized tariff schedule (HTS) codes not tied to covered merchandise. In addition, the Alleger claims that DUSA is evading the *Order* by failing to declare and pay AD duties on imports of covered merchandise by misclassification of entries under harmonized tariff schedule (HTS) codes not tied to covered merchandise.

Description of the Alleged Evasion Scheme and Supporting Evidence

According to the Alleger, DUSA has been purchasing Chinese-origin covered merchandise from its U.K. parent company, DUK, that was transshipped through the United Kingdom and imported into the United States without DUSA declaring these imports as Chinese origin, thereby evading the *Order*.¹⁰ The Alleger provided an [

type of evidence

].¹¹ The [*type of*

evidence] reviewed DUK's import records which showed that Chinese-origin covered merchandise entered the United Kingdom under harmonized tariff schedule (HTS) subheading 6804.21.00, either directly from China or indirectly through Ukraine, and then subsequently exported to the United States.¹² The Alleger claimed that DUK is among the top U.K. importers for HTS subheading 6804.21.00 and that this company imported primarily from Chinese producers.¹³

The [*evidence source*] conducted a review of DUK's webpages which stated that it has "{...} been supplying the diamond drilling and sawing industry for over 20 years."¹⁴ However, [

description of how evidence was obtained

].¹⁵ The [*type of evidence*]

documents the [*description of evidence*

].¹⁶ After these attempts, the [

type and description of evidence

].¹⁷ During this

visit, [*description of evidence*

].¹⁸

The [*type of evidence*] noted that a review of [*description of evidence*

].¹⁹

Specifically, the [*description of evidence*

¹⁰ See Allegation at 2.

¹¹ *Id.* at 5, Exhibit 2, and Exhibit 5A (Affidavit).

¹² *Id.* at 2-4, Exhibit 2 at 30-31, and Exhibit 2 at 33-34.

¹³ *Id.* at 12 and Exhibit 2 at 33.

¹⁴ See Allegation at 10 and Exhibit 6B.

¹⁵ *Id.* Exhibit 2 at 2.

¹⁶ *Id.* at 10 and Exhibit 2 at 1.

¹⁷ *Id.* Exhibit 2 at 1.

¹⁸ *Id.*

¹⁹ *Id.* Exhibit 2 at 1 and 15 and Exhibits 6A-6B.

].²⁰ A further review of the company's [*description of evidence*].²¹

An analysis of DUK's [*description of evidence*] was included in the [*evidence source*]. Copies of DUK's [*description of evidence*

].²² In addition, DUK's [*description of evidence*

].²³ Based on these findings in conjunction with the totality of evidence noted above and included in the [*evidence source*], the [*evidence source*] makes the following conclusion:

[*evidence findings*

].²⁴

The Allegation included an affidavit by [*name and position*]. Based on his [#] years of experience in the diamond sawblade industry, [

description of evidence

].²⁵ In addition, [*name and position*] noted that the previously submitted EAPA investigation²⁶ included [

description of evidence].²⁷

Finally, DSMC claimed that DUSA is misclassifying its U.S. imports from DUK under incorrect HTS subheadings that do not include diamond sawblades or parts thereof, to further avoid discovery of its evasion.²⁸ Based on its review of U.S. import data obtained from [*source*], the Alleger claimed DUSA is importing the covered merchandise under HTS codes 8708 and 8207, which are not covered under the scope of the *Order*, instead of using the correct HTS codes 8202, 8205, or 6804 for covered merchandise.²⁹ Specifically, this import data shows that DUSA imported products such as “diamond wire” under an HTS code for “fowl, poultry,” and “wet coredrill” under an HTS code for “fruit.”³⁰ Although the Alleger is aware that [*source*] data

²⁰ *Id.* Exhibit 2 at 19.

²¹ *Id.* Exhibit 2 at 15-17.

²² *Id.* Exhibit 2 at 2-8.

²³ *Id.* Exhibit 2 at 14.

²⁴ *Id.* Exhibit 2 at 34.

²⁵ *Id.* at 14 and Exhibit 5A.

²⁶ *Id.* at Exhibit 1 and Exhibit 3.

²⁷ *Id.* at 6-9 and Exhibit 5A.

²⁸ *Id.* at 13.

²⁹ *Id.* at 13 and Exhibit 7.

³⁰ See Supplemental to Allegation at 2.

does not represent the official entry information, it maintains that this data systematically reflects the use of incorrect HTS categories.³¹

Therefore, the Allegor concludes that all evidence reasonably suggests that DUSA, the Importer, transshipped Chinese-origin diamond sawblades through the United Kingdom via its affiliated supplier, DUK, and/or misclassified these U.S. imports from DUK to avoid paying AD duties subject to the *Order*.

Initiation Assessment

TRLED considered the evidence submitted by the Allegor to determine whether it should initiate an investigation into DUSA. In assessing the information provided in the Allegation and Supplemental to Allegation, TRLED found the information submitted by the Allegor reasonably suggested that DUSA entered merchandise covered by the *Order* into the customs territory of the United States while failing to declare the covered merchandise as subject to payment of AD duties.³² Specifically, the evidence contained in the Allegation reasonably suggests that DUK imports Chinese-origin diamond sawblades and parts thereof, covered by the scope of the *Order*, and then exports the cover merchandise to its U.S. affiliate, DUSA, while claiming the country-of-origin as the United Kingdom. In addition, the evidence contained in both the previous and current allegations suggests that DUK has only warehousing and limited workshop capabilities.³³ Finally, an analysis of the public import data also suggests that DUSA is importing the covered merchandise from its parent company, DUK, into the United States under various HTS codes not covered by the *Order*, presumably to further avoid paying antidumping duties. Therefore, the totality of evidence reasonably suggests that the Importer may be entering Chinese-origin diamond sawblades covered by the *Order* into the United States through evasion.

For the reasons set forth above, CBP initiated an investigation on November 21, 2025, under the authority of 19 U.S.C. § 1517(b)(1) on the Importer's imports of covered merchandise during the POI that are alleged to be entered for consumption into the customs territory of the United States through evasion.³⁴ While CBP shall make a determination as to whether merchandise properly within the scope of the *Order* was entered into the customs territory of the United States through evasion, the statute does not limit this determination to only the type of evasion for which the investigation was initiated.³⁵

Interim Measures

Not later than 90 calendar days after initiating an investigation under EAPA, TRLED will decide based on the record of the investigation if there is reasonable suspicion that merchandise covered by the *Order* was entered into the United States through evasion.³⁶ CBP need only have sufficient evidence to support a reasonable suspicion that the importers alleged to be evading entered merchandise covered by an AD or CVD order into the United States by a material false statement or act, or material omission, that resulted in the reduction or avoidance of applicable

³¹ *Id.*

³² See Allegation and Supplemental to Allegation.

³³ See Allegation, at 11 citing Exhibit 2 at 12-17 at 14, citing Exhibit 5A, and at 9 citing Exhibit 5B.

³⁴ See CBP Memorandum, "EAPA 8225 Initiation Memorandum"; see also 19 C.F.R. § 165.15.

³⁵ See 19 U.S.C. § 1517(c)(1)(A).

³⁶ See 19 C.F.R. § 165.24(a); see also CBP Memorandum, "EAPA 8225 Initiation Memorandum."

AD or CVD cash deposits or other security.³⁷ If reasonable suspicion exists, CBP will impose interim measures pursuant to 19 U.S.C. § 1517(e) and 19 C.F.R. § 165.24. As explained below, CBP is imposing interim measures on DUSA because there is reasonable suspicion that DUSA entered covered merchandise from China into the United States through evasion by means of transshipment and/or by failing to declare and pay AD duties on imports of covered merchandise by misclassification of entries.³⁸

CBP Form 28

After initiating the investigation, TRLED issued CBP Form 28 (CF-28) request for information (RFI) to DUSA on December 10, 2025, pertaining to entries [#]6852, [#]8669, and [#]5178, where DUSA declared the United Kingdom (UK) as the country of origin for the covered merchandise.³⁹ CBP requested manufacturer and production information, including raw material documentation and sample factory production records. In addition, CBP requested sales information and documentation (*e.g.*, purchase orders, commercial invoices, transportation documentation, and proof of payment) for the selected POI entries.⁴⁰ On January 29, 2026, DUSA submitted a timely CF-28 response for the above noted entries.⁴¹

DUSA stated in its CF-28 response that finished diamond sawblades are purchased from its parent company DUK, on a cost-plus basis.⁴² In order to manufacture its finished diamond sawblades, DUK [

description of production process

].⁴³ According to DUSA, [

supplier and production information

].⁴⁴ DUSA provided DUK's

step-by-step manufacturing process at its UK facility and identified with photographs, the production equipment used to manufacture the finished diamond sawblade.⁴⁵

DUSA provided production job sheets generated by DUK, which claim to be related to the diamond sawblade model types reflected on the three commercial invoices associated with the three noted entries.⁴⁶ In addition, DUSA provided sample import supplier purchase documentation from DUK for [

identification of inputs

] that are purportedly used in its production of diamond sawblades. The submitted import documentation included the relevant DUK purchase order; the associated UK customs import documentation; and proof of payment for each of the [

purchase documentation

].⁴⁷

³⁷ See 19 U.S.C. § 1517(e); *see also* 19 C.F.R. § 165.24.

³⁸ See CBP Memorandum, "EAPA 8225 Initiation Memorandum."

³⁹ See CBP CF-28 pertaining to entries [#]6852, [#]8669, and [#]5178, dated December 10, 2025.

⁴⁰ *Id.*

⁴¹ See DUSA CF-28 Response pertaining to entries [#]6852, [#]8669, and [#]5178, dated January 29, 2026.

⁴² *Id.* at 4.

⁴³ *Id.* at 6.

⁴⁴ *Id.* at 6-7.

⁴⁵ *Id.* at 7 and Exhibit 5.

⁴⁶ *Id.* at Exhibits 1-2.

⁴⁷ *Id.* at Exhibit 7.

Finally, the CF-28 response included copies of [#] commercial invoices issued by DUK that include, in part, purchases of diamond sawblades by DUSA that are presumably tied to the three entries at issue.⁴⁸ DUSA also provided the relevant bill of lading purportedly tied to these [#] commercial invoices that cover the three entries under examination in the CF-28.⁴⁹

UK Import Information and Data

TRLED independently obtained UK import information and data to determine the relevant UK classifications for covered merchandise and the quantity and value of these imports into the UK from China during the POI.⁵⁰ Specifically, this information shows the most used Harmonized System of Nomenclature (HSN) codes used for UK imports of diamond sawblades, as well as additional classification descriptions used by the “UK Integrated Online Tariff” service at the ten-digit level. Based on this information, we were able to analyze UK import data to determine that covered merchandise was included in imports from China during the POI.⁵¹

Analysis

TRLED reviewed the information reported in DUSA’s CF-28 response and found that while some of the evidence suggests that DUK may have some capacity to produce diamond sawblades, it failed to demonstrate that the entries under examination are either wholly produced in the United Kingdom or produced using non-Chinese segments and cores. In addition, CBP obtained UK information and data that reflects covered merchandise from China was imported into the United Kingdom during the POI.⁵²

The evidence provided by DUSA in its CF-28 response was insufficient to establish DUK produced all the covered merchandise that entered the United States during the POI. Specifically, DUSA did not provide the requested factory profile or any other source documentation to substantiate DUK’s claimed production capacity of [#] diamond sawblades at its UK production facility.⁵³ Instead, DUSA only provided a certificate of incorporation that only shows DUK to be a private company and includes no information regarding its business activities, production capability, and production capacity.⁵⁴

Furthermore, CF-28 requested complete factory production information; to include the raw material, semi-finished, and finished goods inventory movement records for DUK.⁵⁵ None of the inventory movement records associated with the production of covered merchandise by DUK were provided. Therefore, CBP is unable to ascertain the universe of inputs purchased and consumed during the POI, which is necessary for establishing DUK’s production capability and

⁴⁸ *Id.* at Exhibit 2.

⁴⁹ *Id.* at Exhibit 3.

⁵⁰ See CBP Memorandum, “EAPA Case No. 8225 – Adding Information to the Administrative Record,” dated February 26, 2026 (EAPA 8225 Adding Information Memorandum).

⁵¹ *Id.* at Attachments I-IV.

⁵² *Id.*

⁵³ See DUSA CF-28 Response at 8.

⁵⁴ *Id.* at Exhibit 6.

⁵⁵ *Id.* at 8.

capacity to produce diamond sawblades. Rather, DUSA provided limited production information that included recent purchase and shipment information related to DUK's [*type and #*] suppliers based upon a single commercial transaction.⁵⁶

In addition, we find that DUK's [*documentation*] for diamond sawblades are only representative of the different types of diamond sawblade models that may be produced or sold by DUK to DUSA for the entries in question because they cannot be directly tied to the models referenced on the [*#*] commercial invoices for these entries. DUSA claims that [*explanation of information on documentation*].⁵⁷

However, our review of these [*documents*] found that the [*information on documentation*] were frequently left blank and therefore, allowed no traceability to the source of the cores and segments used in DUK's production of that particular model of diamond sawblade.⁵⁸

TRLED found that the documentation provided for the [*merchandise*] purchased by DUK from [*supplier name*], could not have been used to produce the diamond sawblades for the three entries under examination because the commercial invoice from this supplier for this input postdates the invoices and entry dates for the diamond sawblades purchased by DUSA from DUK. Specifically, DUSA was invoiced by DUK on [*dates*].⁵⁹ The date of entry into the United States for these sales for the entries in question are as follows: entry [*#*]5178 entered [*date*]; entry [*#*]8669 entered [*date*]; and, entry [*#*]6852 entered [*date*].⁶⁰ However, [*name*] did not receive the purchase order from DUK for the [*merchandise*] until [*date*]; did not invoice DUK until [*date*]; and, did not receive the UK Customs Declaration Service document approval for this sale and UK entry until [*date*]. Accordingly, we have no evidence on record to show that [*merchandise*] were used for the entries under examination.

Finally, the UK import information and data obtained by TRLED shows that, during the POI, DUK imported merchandise from China under [*#*] UK HSN codes that include covered merchandise.⁶¹ Specifically, UK import data shows that DUK imported merchandise from China under the following [*#*] HSN codes which can include covered merchandise: [*list of #s*].⁶² We relied on publicly available information obtained from Volza, an import export data collection service, and from the "UK Integrated Online Tariff" service, to determine the most commonly used HSN codes for UK imports of diamond sawblades.⁶³

⁵⁶ *Id.* at Exhibit 7 for submitted documentation associated with a single purchase from each supplier which includes DUK's relevant purchase order, commercial invoice, UK customs form, and proof of payment.

⁵⁷ *Id.* at 9 and Exhibits 1-2.

⁵⁸ *Id.* at Exhibit 1.

⁵⁹ *Id.* at Exhibit 2.

⁶⁰ See CBP Post Receipt Report Dymatec USA, dated November 5, 2025.

⁶¹ See EAPA 8225 Adding Information Memorandum.

⁶² *Id.* at Attachments I.

⁶³ *Id.* at Attachments II-IV.

Based on the totality of evidence noted above, DUSA failed to demonstrate that DUK's diamond sawblades for the three entries under examination, are either wholly produced in the United Kingdom or produced using non-Chinese segments and cores. In addition, the UK import data and additional information suggests that Chinese diamond sawblades were imported into the United Kingdom by DUK during the POI.⁶⁴ Therefore, CBP finds that there is reasonable suspicion that DUSA entered merchandise covered by the *Order* but failed to declare and pay the applicable AD duties.

Enactment of Interim Measures

Based on the record evidence described above, CBP determines that reasonable suspicion exists that DUSA entered, during the POI, diamond sawblades from China subject to *Order* (A-570-900), into the United States through evasion by importing diamond sawblades through the United Kingdom and declaring the merchandise as country of origin, United Kingdom. Therefore, CBP is imposing interim measures pursuant to this investigation.⁶⁵ Specifically, in accordance with 19 U.S.C. § 1517(e)(1)-(3), CBP shall:

- (1) suspend the liquidation of each unliquidated entry of such covered merchandise that entered on or after November 21, 2025, the date of the initiation of the investigation;
- (2) pursuant to the Commissioner's authority under section 1504(b) of this title, extend the period for liquidating each unliquidated entry of such covered merchandise that entered before the date of the initiation of the investigation, November 21, 2025; and
- (3) pursuant to the Commissioner's authority under section 1623 of this title, take such additional measures as the Commissioner determines necessary to protect the revenue of the United States, including requiring a single transaction bond or additional security or the posting of a cash deposit with respect to such covered merchandise.⁶⁶

In addition, for future entries, CBP will require live entry and reject any entry summaries that do not comply with live entry and require refiling of entries that are within the entry summary rejection period. CBP may also evaluate the Importers' continuous bonds to determine their sufficiency. Finally, CBP may pursue additional enforcement actions, as provided by law, consistent with 19 U.S.C. § 1517(h).

For future submissions or factual information that you submit to CBP pursuant to this EAPA investigation, please provide a business confidential version and public version, with public summaries, to CBP *via* the EAPA Portal (aka the EAPA case management system (CMS)): <https://eapallegations.cbp.gov>. Documents uploaded to the CMS will constitute service on the parties to this investigation,⁶⁷ and all administrative record documents will be available *via* the CMS. Please note that CBP requires that all documents submitted *via* the CMS are made text searchable, especially if those documents are submitted as PDFs.

Should you have any questions regarding this investigation, you may contact us at Sean.M.Carey@cbp.dhs.gov, Deborah.Scott@cbp.dhs.gov, and eapallegations@cbp.dhs.gov with "EAPA Case 8225" in the subject line of your email. Additional information on this

⁶⁴ *Id.* at Attachments I-IV.

⁶⁵ See 19 U.S.C. § 1517(e); see also 19 C.F.R. § 165.24.

⁶⁶ See also 19 C.F.R. § 165.24(b)(1)(i)-(iii).

⁶⁷ See 19 C.F.R. § 165.4; see also 19 C.F.R. § 165.23(c) and 19 C.F.R. § 165.26.

investigation, including the applicable statute and regulations, may be found on CBP's website at: <https://www.cbp.gov/trade/epa>.

Sincerely,

A handwritten signature in blue ink, appearing to read "Victoria Cho".

Victoria Cho
Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
CBP Office of Trade

PBRB 5046-0525